Munugode falls, the crisis caused by the desertion of its MLA is exacerbated by the grand sulk being put on by his local Lok Sabha MP-brother, Komatireddy Venkata Reddy. The latter even skipped a peace meeting chaired by Priyanka Gandhi on August 23 to settle an acrimonious faction fight with Telangana Congress chief, A. Revanth Reddy, whose style of functioning has created quite some dissension. On the ground, meanwhile, more than half of the party strong contingent of sarpanches and mandal-level representatives quit to join the TRS.

Against this disarray, the TRS could have gained an early-mover advantage if it had announced a candidate, though the Election Commission is yet to issue the notification. But KCR dilly-dallied amidst a clamour within the TRS to give the ticket to someone from the OBCs, who comprise 80 per cent of the electorate. Party leaders are against the nomination of former MLA K. Prabhakar Reddy. KCR is apparently waiting for the Congress to name its candidate first, but the latter is hobbled by the Komatireddy rebellion, especially Venkata Reddy's threat to stay away from the campaign.

The voluble TPCC chief is, meanwhile, trying to keep the flock engaged with shrill rhetoric of his own, saying the TRS and BJP are actually in cahoots and have a common agenda of finishing off the Congress. "A vote for TRS is a vote for BJP," Revanth claims. "KCR should swear on Yadagiri Lakshmi Narasimha Swamy (the presiding deity in the temple KCR built) that he is against the BJP. TRS did not oppose the Electricity Reforms Bill in the Lok Sabha." He says the TRS has lost the moral right to seek votes as it has not kept its promises to provide 2BHK houses, three-acre plots and Rs 10 lakh to Dalit families, loan waiver of Rs 1 lakh to all farmers, Rs 3,000 monthly dole to the jobless and a job to every family.

BILKIS BANO CASE

A PARTING IN THE LAW

By Kiran D. Tare



FACE OF SORROW Bilkis Bano says the release of the convicts has "left her numb"

BANDEEP SINGH

Amidst the carnage of the 2002 post-Godhra Gujarat riots, some acts of outrage shook the conscience of the nation with special force. One of them was the brutal gangrape of Bilkis Bano, and the killing of 14 members of her family, including her three-year-old daughter Saleha. A mob in Randhikpur village, Dahod district, had turned them into prey as they tried to flee communal violence. After a long trial, 11 of the accused were convicted and sentenced to life imprisonment by a special CBI court in Mumbai—where the trial had been moved by the Supreme Court—in January 2008. Fourteen years later, this August 15, they walked out of Godhra prison after the state government accepted the recommendation of a jail advisory panel and granted remission to them under a 1992 state policy. The decision drew flak from many quarters, with media images of the released convicts being publicly feted with garlands adding to the outrage.

The legal process that led up to this merits a closer look. The 1992 policy rested on the view that 20 years is an arbitrary duration for a life sentence. Now, Gujarat had formulated a fresh policy in 2014 after the Supreme Court judged the earlier one invalid. As per the 2014 policy, two situations would bar remissions: one, if the conviction flowed from an investigation by an agency empowered by the Delhi Special Police Establishment Act (as the CBI is); and two, if the conviction was for murder with rape or gangrape. The Bilkis case convicts ticked both boxes. Still the 1992 policy was resorted to, and this was enabled by the SC.

The process was set in motion on May 13 when the apex court asked the Gujarat government to decide on an application for remission filed by one of the convicts, Radheshyam Shah, stating that such an application should be considered by the state where the crime had taken place, not the state where the trial was conducted, thus differing from the Gujarat HC stand on Shah's plea. Crucially, the SC also maintained the decision would have to be based on the policy that stood on the date of conviction. And in 2008, Gujarat's 1992 remission policy was very much in place.

Section 432 of the Code of Criminal Procedure (CrPC) empowers a state government to remit sentences as prison is a state subject under the Constitution. Section 433A of CrPC adds a caveat: convicts